

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carlo Vescovi	Team: Squad #14	CCRB Case #: 202004307	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Wednesday, 06/03/2020 9:00 PM	Location of Incident: East 51st Street and 3rd Avenue	18 Mo. SOL 5/4/2022	Precinct: 17		
Date/Time CV Reported Tue, 06/16/2020 12:27 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 06/16/2020 12:27 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM John Lamneck	15507	956822	017 PCT
3. POM Frank Fiorenza	18475	957588	SRG 3
4. SGT Christophe Catalano	05240	936323	SRG 1

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Alfredo Jeff	29583	954975	SRG 3
2. POM Miguel Salgado	09053	951197	SRG 3
3. CPT Joseph Taylor	00000	924542	SRG 3
4. LT Patrick Oneill	00000	942281	017 PCT
5. POM Cristian Hernandez	03152	961813	SRG 4

Officer(s)	Allegation	Investigator Recommendation
A . SGT Christophe Catalano	Force: Sergeant Christopher Catalano used physical force against an individual.	A . Unsubstantiated
B . SGT Christophe Catalano	Force: Sergeant Christopher Catalano used physical force against § 87(2)(b)	B . Substantiated
C . POM Frank Fiorenza	Force: Police Officer Frank Fiorenza used physical force against § 87(2)(b)	C . Substantiated
D . POM John Lamneck	Discourtesy: Police Officer John Lamneck spoke discourteously to § 87(2)(b)	D . Substantiated
E . POM John Lamneck	Off. Language: Police Officer John Lamneck made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	E . Substantiated
F . Officers § 87(2)(g), § 87(4-b)	Force: Officers used physical force against § 87(2)(b)	F . Officer(s) Unidentified
§ 87(2)(g), § 87(4-b)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		

Case Summary

On June 16th, 2020, § 87(2)(b) filed this complaint directly with the CCRB via the online website.

On June 3rd, 2020, at approximately 8:50 p.m., § 87(2)(b) and her boyfriend, § 87(2)(b) attended a Black Lives Matter demonstration that travelled the east side of Manhattan. As the demonstration approached East 51st Street and 3rd Avenue in Manhattan, a group of officers, including Sergeant Christopher Catalano of Strategic Response Group 1; PO Cristian Hernandez of SRG 4; Captain Joseph Taylor, Police Officer Miguel Salgado, Police Officer Alfredo Jeff, and Police Officer Frank Fiorenza, of SRG 3; and Police Officer John Lamneck, of the 7th Precinct, began to disperse the protest. During the dispersal, Sgt. Catalano grabbed an unidentified individual and allegedly pulled them to the ground (**Allegation A: Force, unsubstantiated**). Next, Sgt. Catalano allegedly used a forcible takedown against § 87(2)(b) (**Allegation B: Force, substantiated**). PO Fiorenza, PO Salgado, PO Lamneck assisted Sgt. Catalano in the apprehension of § 87(2)(b) at which point PO Fiorenza allegedly punched § 87(2)(b) in the right eye (**Allegation C: Force, substantiated**). During the arrest, PO Lamneck told § 87(2)(b) “Get the fuck on the ground, bitch.” (**Allegation D: Discourtesy, substantiated, Allegation E, Offensive Language, substantiated**). Simultaneously, between three and five unidentified officers allegedly used a forcible takedown against § 87(2)(b) (**Allegation F, Force: officers unidentified**).

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) and § 87(2)(b) were issued summons for violating the Mayoral Executive Order on the curfew (BR 01, BR 02). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

The investigation obtained body worn camera footage from PO Salgado, PO Lamneck, Lieutenant O’Neill, and PO Fiorenza, and cell phone footage from § 87(2)(b) and witness § 87(2)(b) the relevant aspects of which will be discussed below. § 87(2)(g), § 87(4-b)

Findings and Recommendations

Allegation (A) Force: Sergeant Christopher Catalano used physical force against an individual.

Allegation (B) Force: Sergeant Christopher Catalano used physical force against § 87(2)(b)

The investigation established the following facts. § 87(2)(b) and § 87(2)(b) were walking as part of a Black Lives Matter demonstration near the intersection of East 51st Street and 3rd Avenue in Manhattan. Officers on scene, including Sgt. Catalano and PO Fiorenza, conducted arrests against members of the demonstration pursuant to curfew violations. It is undisputed that Sgt. Catalano used a takedown while apprehending § 87(2)(b) (BR 03) stated that she and § 87(2)(b) were walking in the street near the back of the protest, while officers followed the protest on both sides as well as from behind. § 87(2)(b) took out her cell phone and began recording video as officers ran towards and entered the crowd. § 87(2)(b) observed an officer, determined by the investigation to be Sgt. Catalano, approach an unidentified individual approximately six inches to the right of § 87(2)(b) and grab them by one of their shoulders. Sgt. Catalano allegedly pulled this individual to the ground. § 87(2)(b) turned and asked Sgt. Catalano what he was doing. § 87(2)(b) made no other movements; she stood still and filmed with her phone in her right hand. About ten or fifteen seconds later, between three and five officers surrounded § 87(2)(b) determined by the investigation to be PO Lamneck, PO Salgado, and

PO Fiorenza. Sgt. Catalano grabbed § 87(2)(b) left hand, pulled it behind § 87(2)(b) back, and swept § 87(2)(b) feet out from under her, causing § 87(2)(b) to fall to the ground. § 87(2)(b) landed flat on her chest with her right arm out forward in front of her and Sgt. Catalano still holding onto her left hand. § 87(2)(b) dropped her phone at this point.

§ 87(2)(a) – PHL 18(6)

§ 87(2)(b) (BR 06) testified that he observed at least two officers, one of whom the investigation determined to be Sgt. Catalano, approach an unidentified individual from behind, grab him by the arms and shoulders, and forcibly take him to the ground. § 87(2)(b) did not witness the takedown of § 87(2)(b) who he described to be 5'2" and 100 pounds.

The investigation also obtained a phone statement from § 87(2)(b) (BR 07), a protestor who also attended the same demonstration but was not otherwise acquainted with § 87(2)(b). § 87(2)(b) exchanged contact information with § 87(2)(b) after witnessing her interaction with officers. § 87(2)(b) testified that in the moments leading up to § 87(2)(b) apprehension, a group of officers with bicycles approached the back of the march and began arresting protestors. § 87(2)(b) observed an officer, identified as Sgt. Catalano, arrest a protestor. § 87(2)(b) calmly walked towards Sgt. Catalano and asked questions regarding the arrest. Almost immediately, a group of five officers, identified as Sgt. Catalano, PO Fiorenza, PO Salgado, and PO Lamneck, approached § 87(2)(b). § 87(2)(b) did not hear any statements made by officers. § 87(2)(b) stated that officers forcibly took § 87(2)(b) to the ground but was unable to describe their specific actions in more detail. Shortly afterwards, § 87(2)(b) was placed under arrest and removed from the location.

§ 87(2)(b) provided cell phone footage she recorded during the incident (BR 08). The footage begins with § 87(2)(b) walking southward on 3rd Avenue. At 1:35 on the player timestamp, § 87(2)(b) turns fully around so that the camera is facing north on 3rd Avenue as officers approach the protest. The footage also captures the individual described in § 87(2)(b) testimony at the 1:37 timestamp, wearing a black shirt and dark pants, walking just behind § 87(2)(b). At 1:40-1:44, Sgt. Catalano uses both hands to grab the left bicep of the individual. Sgt. Catalano then pulls the male individual by the left arm back and downwards, causing the individual to stumble backwards offscreen. § 87(2)(b) footage does not capture what happens to the individual after this point. § 87(2)(b) says, "What are you doing, what the fuck are you doing?" At 1:45-1:48, PO Salgado, PO Fiorenza, and PO Lamneck approach § 87(2)(b). As PO Salgado, PO Fiorenza, and PO Lamneck reach § 87(2)(b) at 1:48, the footage goes dark and does not capture distinct actions, though scuffling noises are captured. § 87(2)(b) falls to the ground and breaks her fall with her left hand. § 87(2)(b) states, "Don't touch me, don't fucking touch me." The footage ends at 1:59.

§ 87(2)(b) also provided the investigation with cell phone footage (BR 09), which captures this aspect of the incident. The footage begins with § 87(2)(b) facing north on 3rd Avenue, away from the rear of the protest and towards a line of officers. § 87(2)(b) who can be identified by her teal dress, is captured standing in the street at 0:00 on the player timestamp, facing north on 3rd Avenue, with her right arm at chest level, holding her phone, and her left arm by her side. Sgt. Catalano is also captured directly north of her on 3rd Avenue. From 0:05-0:07 on the player timestamp, § 87(2)(b) takedown is captured. At 0:06 on the player timestamp, PO Salgado can be seen on § 87(2)(b) right side and PO Fiorenza is just behind him. § 87(2)(b) is still standing at this point. As the footage pans leftwards, Sgt. Catalano is captured with his back turned to the camera. While his distinct actions are not captured, § 87(2)(b) falls toward the ground at 0:07, with Sgt. Catalano crouched in front of her body. At 0:08, Sgt. Catalano stands up and turns to face the crowd, south on 3rd Avenue. PO Salgado is no longer visible on screen as he is blocked by another civilian, and PO Lamneck stands just north of where § 87(2)(b) takedown occurred. § 87(2)(b) is on the ground, laying on her left side, and PO Fiorenza and PO Salgado place § 87(2)(b) in flex cuffs.

The footage ends at 0:31 on the player timestamp.

PO Fiorenza's body worn camera footage (BR 10), begins facing south on 3rd Avenue. A large group of officers proceeds towards the protest, and at 0:38 on the player timestamp, § 87(2)(b) is captured standing at the rear of the protest facing north on 3rd Avenue. § 87(2)(b) is standing stationary with her phone in her right hand and her left hand by her side. At 0:39, § 87(2)(b) walks one step south and begins to turn her body rightwards to face south. At 0:40, Sgt. Catalano grabs § 87(2)(b) by her left arm and pulls her body downwards toward the ground. At 0:43, Sgt. Catalano is captured with his right arm around § 87(2)(b) waist as she falls to the ground. At 0:44, § 87(2)(b) is captured on the ground on her left side, facing north.

Sgt. Catalano (BR 11) testified that on the night of the incident, he was assigned to monitor protests alongside other Strategic Response Group units as part of a Mobile Field Force Unit. Sgt. Catalano did not remember apprehending a female civilian during his assignment. Sgt. Catalano recalled only that there was a heavy downpour of rain, and that there was law enforcement action taken against protestors pursuant to curfew violations. A "significant number" of people were arrested, but Sgt. Catalano could not be more specific nor recall any further details.

Sgt. Catalano was shown § 87(2)(b) cell phone video (BR 08) and identified himself as the officer onscreen at minute mark 1:40. Sgt. Catalano did not remember making any physical contact with the unidentified individual onscreen at minute mark 1:42 and as described in § 87(2)(b) testimony and could not recall using force during this incident. Sgt. Catalano was shown PO Fiorenza's body worn camera footage and identified himself as the officer grabbing § 87(2)(b) by her arm and around her waist at minute mark 0:40. Upon reviewing the footage, Sgt. Catalano stated, "I apparently grabbed a female," but did not have any further recollection of the interaction with § 87(2)(b). Sgt. Catalano stated the arrests of protestors were made pursuant to violations of the curfew, or possibly disorderly conduct. Sgt. Catalano stated the actions depicted on screen from 0:30-0:52 did not constitute a use of physical force and stated that he conducted a "guided takedown." Upon reviewing the BWC footage a second time, Sgt. Catalano stated, "I see her being swung behind me. Everyone is usually cuffed on the ground for the safety of the individual and the officer involved...I always try and cuff on the ground." Sgt. Catalano could not recall if § 87(2)(b) was cooperative during their interaction.

In his CCRB Interview Report Worksheet (BR 12) Sgt. Catalano reported that he stood 5'11" and weighed 200lbs on the date of his CCRB interview.

PO Fiorenza testified (BR 13) that the protest was peaceful. A group of approximately 40 officers moved as one group towards the protest. From approximately 20 feet away, PO Fiorenza observed Sgt. Catalano grab § 87(2)(b) but was unable to describe this in more detail and did not know how § 87(2)(b) ended up on the ground. PO Fiorenza testified that he and PO Salgado approached Sgt. Catalano to help him with § 87(2)(b) apprehension in regards to the curfew. PO Fiorenza gave no commands to § 87(2)(b) nor did he hear any other officers give commands to § 87(2)(b).

PO Salgado testified (BR 14) that the protest to which he was deployed was peaceful. PO Salgado observed Sgt. Catalano and unidentified officer use force to get § 87(2)(b) onto the ground. PO Salgado was not able to provide more specific details of the force used against § 87(2)(b). Once on the ground, § 87(2)(b) flared her arms, which prevented Sgt. Catalano and the officer from placing her in handcuffs. PO Salgado observed Sgt. Catalano and an officer attempt to get § 87(2)(b) hands behind her back, but could not remember their exact actions. By the time PO Salgado reached § 87(2)(b) was already on the ground.

Requests for a Threat, Injury, or Resistance Worksheet for § 87(2)(b) yielded negative results (BR 15).

According to NYPD Patrol Guide, Procedure 221-01 (BR 16), force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances.

§ 87(2)(b) and § 87(2)(b) testimony, along with § 87(2)(b) cell phone footage are consistent that Sgt. Catalano grabbed an unidentified individual in the moments leading up to § 87(2)(b) takedown. § 87(2)(g)

While § 87(2)(b) cell phone footage captures Sgt. Catalano grabbing the arm of the individual and pulling them to the ground, it does not capture the moments leading up to this interaction. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Though Sgt. Catalano initially testified that he did not recall interacting with § 87(2)(b) on the night of the incident, he acknowledged PO Fiorenza's BWC footage captured him "grab" § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

PO Fiorenza's BWC footage captures § 87(2)(b) backing up one step and turning her body slightly outwards, away from Sgt. Catalano. Furthermore, § 87(2)(b) testified that § 87(2)(b) was 5'2" and weighed 100 pounds, whereas Sgt. Catalano reported himself to be 5'11" and 200lbs. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation B** be **substantiated**.

Allegation (C) Force: Police Officer Frank Fiorenza used physical force against § 87(2)(b)

It is undisputed that PO Fiorenza was involved in § 87(2)(b) arrest. It is undisputed that PO Fiorenza made rapid motions towards § 87(2)(b) head with his arm during this process. It is undisputed that § 87(2)(b) was not on the ground when PO Fiorenza arrived at the location of her takedown.

§ 87(2)(b) testified that she did not make any movements once Sgt. Catalano took her to the ground. § 87(2)(b) did not hear any officers make any commands at this point. PO Fiorenza allegedly punched § 87(2)(b) with a closed fist three times on her upper face near her right eye while her right arm was in front of her at an angle and PO Salgado as held her left arm.

§ 87(2)(b) alleged she sustained a black right eye as a result of PO Fiorenza's handstrikes and provided the investigation with three images of the injury to her face, taken after her

apprehension (BR 05). The images show dark bruising underneath § 87(2)(b) right eye. § 87(2)(a) – PHL 12/6

§ 87(2)(b) stated that PO Fiorenza punched § 87(2)(b) on the side of her body multiple times while she was on the ground, though the group of officers surrounding her partially blocked § 87(2)(b) view.

In § 87(2)(b) cell phone footage, (BR 09), PO Fiorenza is captured with his closed fist making contact with § 87(2)(b) body between the 0:08 - 0:09 time stamp, although it is unclear where exactly on her body. PO Fiorenza pulls his arm back, still making a closed fist. § 87(2)(b) can be heard offscreen stating, “Why are you hitting her?” at the 0:10 - 0:11 time stamp.

In his body worn camera footage, PO Fiorenza is standing within two feet of § 87(2)(b) near her torso and head at the 0:43 time stamp. From the 0:44 - 0:45 time stamp, PO Fiorenza makes two sudden movements with his right arm towards § 87(2)(b) upper torso, but as he reaches across his chest his body worn camera is obstructed and does not capture if PO Fiorenza makes contact with § 87(2)(b). At the 0:46 time stamp, PO Fiorenza is captured a third time, swinging his arm with a closed fist towards § 87(2)(b) torso or head area. Because the camera is shaky, it is not captured if PO Fiorenza makes contact with § 87(2)(b). At the 0:52 time stamp, PO Salgado is captured putting flex cuffs on § 87(2)(b) who is now on her stomach with her hands behind her back. PO Fiorenza and PO Salgado walk § 87(2)(b) towards the sidewalk on East 51st Street and 3rd Avenue. At 4:05 on the player timestamp, § 87(2)(b) is captured stating, “They punched me in the head really hard. I don’t feel well.” At 4:18 § 87(2)(b) states, “My name is § 87(2)(b) they punched me and threw me on the ground.” PO Fiorenza leaves § 87(2)(b) with PO Salgado and returns to the crowd.

PO Fiorenza testified that § 87(2)(b) was on the ground when he arrived at the location of her takedown. PO Fiorenza stated he did not use a hand strike on § 87(2)(b) specifically on her eye or face. After § 87(2)(b) takedown, she moved around and did not give officers her hands, which were underneath her chest. PO Fiorenza pulled § 87(2)(b) left arm out from underneath her chest in order to zip tie her hands, and PO Salgado did the same to § 87(2)(b) right arm. PO Fiorenza was shown § 87(2)(b) cell phone video starting at 1:25 on the player timestamp. After reviewing the footage, PO Fiorenza acknowledged the video captured that § 87(2)(b) was not on the ground when he arrived at the incident location. PO Fiorenza was shown sections of his own body worn camera footage beginning at the 0:30 minute mark on the player timestamp. PO Fiorenza acknowledged that the video captured distinct rapid motions from his own arm at minute mark 0:38 on the player timestamp. PO Fiorenza stated that these hand motions were to protect § 87(2)(b) head because he was running and did not want to run into her.

Sgt. Catalano and PO Salgado testified they did not observe any officers punch § 87(2)(b) on her face near her eye. PO Salgado testified that PO Fiorenza helped PO Salgado gain control of § 87(2)(b) left arm so that they could place flex cuffs on her wrists. § 87(2)(b) tensed her left arm underneath her body, but after less than five seconds she allowed herself to be cuffed. PO Salgado testified that § 87(2)(b) did not do anything else to resist arrest while she was on the ground.

According to NYPD Patrol Guide, Procedure 221-01 (BR 16), force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances.

§ 87(2)(g)

§ 87(2)(b) is captured on PO Fiorenza’s BWC making statements consistent with the allegation, stating, “They punched me in the head...” in the minutes after the alleged force at the 4:05 timestamp. § 87(2)(b) is also captured on § 87(2)(b) cell phone video asking, “Why are you hitting her?” at the 0:11 timestamp. § 87(2)(b) video,

although it does not distinctly capture PO Fiorenza deploying the punch, captures PO Fiorenza making contact with § 87(2)(b) body with a closed while she is on the ground.

After viewing the video, PO Fiorenza did not dispute the distinct, rapid arm motions that are captured on his BWC footage. § 87(2)(g)

Furthermore, § 87(2)(b) video captures PO Fiorenza near § 87(2)(b) head retracting a closed fist, as § 87(2)(b) is captured shouting, “Why are you hitting her?” § 87(2)(b) is also captured on BWC after her arrest making statements consistent with her testimony, stating, in sum and substance, that an officer punched her in the head. § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **substantiated**.

Allegation (D) Discourtesy: Police Officer John Lamneck spoke discourteously to § 87(2)(b)

Allegation (E) Offensive Language: Police Officer John Lamneck made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

In § 87(2)(b) cell phone video, an officer can be heard stating, “Get the fuck on the ground, bitch,” just after PO Salgado, PO Fiorenza, and PO Lamneck approach her at the 1:51 timestamp.

§ 87(2)(b) did not raise these allegations in her CCRB interview.

During his CCRB interview PO Lamneck identified himself as voice stating, “Get on the fucking ground bitch.” PO Lamneck confirmed that it was a statement he would make if he were trying to effect an arrest. This was the only statement that PO Lamneck made to § 87(2)(b) PO Lamneck could not remember if he issued any commands to § 87(2)(b) before making the statement, “Get on the fucking ground bitch.” PO Lamneck testified that he used this language because he was being assertive during a chaotic arrest situation.

NYPD Patrol Guide, Procedure 200-02 (BR 18), states that members of service pledge to “maintain a higher standard of integrity than is generally expected of others” and to “respect the dignity of each individual and render [their] services with courtesy and civility. DAO-DCT Disciplinary Case No. 2013-10143 ruled that, “profanity has been found to be permissible where the officer has resorted to such language in the heat of a highly dangerous situation” (BR 19).

NYPD Patrol Guide, Procedure 210-03 (BR 20), states that members of service are prohibited from using discourteous or disrespectful remarks regarding another person’s ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability.

It is undisputed that PO Lamneck used discourteous language with § 87(2)(b) § 87(2)(g)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a victim.
- This is the first complaint to which § 87(2)(b) has been a victim.
- Sgt. Catalano has been a member of service for 16 years and this is the first CCRB complaint to which Sgt. Catalano has been named a subject.
- PO Fiorenza has been a member of service for six years and has been named a subject in three CCRB complaints and five allegations, two of which were substantiated.
 - 201901383 involved substantiated allegations of discourtesy and offensive language against PO Fiorenza. The Board recommended Command Level Instruction, and the NYPD imposed Instruction.
 - § 87(2)(g)
- PO Lamneck has been a member of service for six years and has been named a subject of two CCRB complaints and five allegations, four of which were substantiated.
 - 202000121 involved substantiated allegations of force, forcible removal to the hospital, and discourtesy (word) against PO Lamneck. The Board recommended Command Discipline A and the NYPD disposition is unavailable.
 - § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation.
- On January 18th, 2021, a Notice of Claim request was sent to the New York City Office of the Comptroller and will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad No.: 14

Investigator: C.V. Inv. Carlo Vescovi 02/04/2020
Signature Print Title & Name Date

Squad Leader: Cassandra Fenkel IM Cassandra Fenkel 02/05/2020
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date